

10.	26PR0165	IN THE MATTER OF JUNE O. KNOX LIVING TRUST DATED FEBRUARY 1, 2000
INSTRUCTION HEARING		

On June 4, 2026, Petitioner filed a Petition for Orders Under Cal. Prob Code § 850(a)(3) Confirming Trust Ownership of Property. A Notice of Hearing was filed on June 11, 2026. No opposition has been filed.

Petitioner seeks the following relief:

1. Finding that all notices have been provided as required by law;
2. Confirming that the following financial accounts are assets of the June O. Knox Living Trust dated February 1, 2000, subject to the terms of the trust and under the control of the trustee of the trust: (1) Chase Bank Certificate of Deposit Account #0484; and (2) Chase Bank Certificate of Deposit Account #0487.

Settlor, June O. Knox ("Settlor"), executed a declaration of trust entitled the June O. Knox Living Trust on February 1, 2000. Settlor executed the First Restatement to the trust on September 21, 2020. Article 1, Paragraph 1.1 of the restated trust instrument provides that:

The property described in the attached list of Trust Property, marked 'Schedule A,' is now held by the Trustee in trust. This property and any other property later transferred to the Trust is hereafter referred to as the "Trust Property" and shall be held, administered, and distributed as provided in this document and any subsequent amendments to this document.

Items 1, 2, and 3 on Schedule A to the restated trust instrument are (1) Chase Bank savings acct # 7668012120; (2) Chase Bank checking acct # 894196872; and (3) Chase Bank CD # 9318487683.

Paragraph 4.1.1. of the Trust entitled Distribution of Chase Bank Accounts instructs:

The Trustee shall divide and distribute the funds remaining in the Settlor's Chase Bank Accounts as follows: one-half to Joyce Kilburg and James Kilburg, or the survivor of them, and one-half to Gina Courter and Robert Courter, or the survivor of them.

On September 21, 2020 Settlor also executed her Last Will and Testament, which provides in Article 2, paragraph 2.2:

I give all of my probate estate, after expenses and taxes are paid under this Will, to the then-acting Trustee of the June O. Knox Living Trust dated February 1, 2000 and restated in full on September 21, 2020, to be held and administered by the

trustee according to the terms and conditions of that trust including, without limitation, any amendment made to it before my death.

Settlor became incapacitated prior to death and Petitioner began administering the trust as Successor Trustee. Pursuant to her fiduciary duties, Petitioner asked Chase Bank to establish certificate of deposit accounts and transfer funds from Settlor's checking and savings accounts to the CD accounts to make the Trust assets productive. These assets had previously been transferred into the Trust by Settlor. When the CD accounts were opened, the Chase Bank representative titled the accounts in the Settlor's individual name and noted Petitioner as the Attorney-in-Fact under Settlor's Power of Attorney. Unbeknownst to Petitioner, this unintentionally converted the funds from the trust to Settlor as an individual. The error was not discovered until after Settlor's death.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.
- (b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

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July 20, 2026
Dept. 9
Probate Tentative Rulings

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

TENTATIVE RULING #10:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.